ELINAH MOYO

Versus

GOD'S GLORY MINING SYNDICATE

And

THE PROVINCIAL MINING DIRECTOR
MATABELELAND SOUTH PROVINCE NO

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 4 DECEMBER 2025

Mr Mafirakureva and with Mr L Nleya, for the applicant
N Sithole, for the first respondent

Urgent Chamber Application

NDUNA J: The applicant is a miner. She issued a court application in which she alleges the following against her neighbour: -

1. That the first respondent has encroached in her mining claim and is busy mining therefrom.
2. The second respondent got seized with the matter and summoned both parties to his office for a determination
3. The first respondent did not attend to the proposed hearing
4. The 2nd respondent made a determination which determination has failed to stop the first respondent from the encroachment into applicant's claims
5. It is therefore alleged that the first respondent has continued to mine in the applicant's mine despite the order of the 2nd respondent

As a result, the applicant has approached this court for an order to be issued pending the finalisation of the matter. The interim order being sought is to the following effect: -

1. Pending the return date, the first respondent be and is hereby directed to suspend all mining activities within the mining shaft falling within the mining claim of the applicant being Claremont 29 Registration Number 40847 whose co-ordinates are: -

A 0743 709 7769 849
B 0743 440 7769 437
C 0743 338 7769 492
D 0743 537 7769 869

2. In the event that the 1st respondent fails to comply with paragraph 1 above, the Sheriff of the High Court with the assistance of ZRP Fort Rixon be and is hereby directed to take all the necessary actions to stop the 1st Respondent within the applicant's mining claim stated above
3. The 1st respondent is interdicted from moving or tempering with any gold ore extracted within the applicant's mining claim stated in paragraph 1 above

The Final order prays for the following:

1. The provisional order of this court is confirmed.
2. The 1st Respondent be and are hereby permanently interdicted from entering, mining and/or carrying any mining activities within the mining claim of the applicant known as Claremont 29 Registration No. 40847 whose coordinates are: -
   A 0743 709 7769 849
   B 0743 440 7769 437
   C 0743 338 7769 492
   D 0743 537 7769 869
3. The 1st respondent is ordered to account to the Applicant, within 5 days of granting of this order, for all the gold ore extracted within the applicant's mining claim from the period extending the 5th of December 2024 to date of granting of this final order and be directed to pay all such proceeds to the applicant.
4. The 1st Respondent shall pay costs of this application at an attorney and client scale.

The first respondent opposes theapplication. In nutshell he denies that he is encroaching into applicant's mine as alleged. He avers that he is mining in his own mine and does not know anyone called 'Mr Moyo' who is being alleged to be mining

in the applicant's mining claim. He further avers that the matter needed to be dealt with as an action not an application as there a number of disputed facts attended to the claim. Firstly, it is true that an approach of the court by way of application is not the route if the application has some disputes of facts attended to it.

In *Masukusa v National Foods Ltd & Anor 1983 (1) ZLR 232,* the court said proceedings should not be initiated by court application, otherwise known as notice of motion, when there is likely to be a conflict in the evidence or where the claim is not liquid. However, courts take a robust view of conflict of facts, and where the issue can be resolved on the papers, despite apparent conflicts, the court will proceed to determine the matter on the papers filed. The court must first ascertain whether or not there is a real dispute of fact. In *Supa Plant Investments (Pvt) Ltd v Chidavaenzi 2009 (2) ZLR 132 (H)* the court observed that:

> "A material dispute of facts arises when material facts alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

The opposing papers must show a clear dispute of fact incapable of resolution without hearing oral evidence. Generally, in application proceedings, the courts should take a robust and common-sense approach to disputes of fact and to resolve the issues before them despite the apparent conflict. In this case the opposing papers are not effectively refuting the averments of infringement of the applicant's rights. The applicant is very clear in that she states that there is encroachment into her claim from the first respondent's mine. It is not enough to deny that the person named is unknown to the first respondent. The applicant had effectively stated that the named individual is mining from the first respondent's mine and had said that he would not be stopping his activities until he has been told by the second respondent to stop.

In *Ethel Tsitsi Mpezeni versus Zimbabwe Electoral Commission and Minister of Justice, Legal and Parliamentary Affairs And 14 Others HH 475/2018* the following was held: -

The requirements for an interim interdict to be granted are settled. An applicant for a temporary interdict will succeed if he or she establishes the following:

(a) That the right which forms the subject matter of the main action and that the applicant seeks to protect is clearly or prima facie established, even though open to some doubt;
(b) Where the right is only prima facie established, that there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and she or he ultimately succeeds in establishing the right. This requirement is not necessary where a clear right is established.
(c) The balance of convenience favours the granting of interim relief; and
(d) The applicant has no other satisfactory remedy.

The rights which the applicant hereby seeks to protect is apparent. And if the illegal mining continues to occur she will suffer irreparable loss in the once the mineral is removed there will be nothing for her to benefit. Clearly there is no other clear right. It is therefore proper that the application for an interim order be granted. The applicant has clearly specified her requirements. She needs to have any mining to cease of any mining activity which is going on illegally in her claim by the respondent. It is this which she wants to be stopped. Then the matter would be decided upon. It would be wrong for her to be required to move to cease the mining in her claim at any later stage.

It is on this basis that the interim relief as prayed for in the draft order is granted.

It is accordingly ordered as follows: -

1. Pending the return date, the first respondent be and is hereby directed to suspend all mining activities within the mining shaft falling within the mining claim of the applicant being Claremont 29 Registration Number 40847 whose co-ordinates are: -
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2. In the event that the 1st Respondent fails to comply with paragraph 1 above, the Sheriff of the High Court with the assistance of ZRP Fort Rixon be and is hereby directed to take all the necessary actions to stop the 1st Respondent within the applicant's mining claim stated above

3. The 1st Respondent is interdicted from moving or tempering with any gold ore extracted within the applicant's mining claim stated in paragraph 1 above

Moyo and Nyoni, applicant's legal practitioners
Sithole Law Chambers, respondents' legal practitioners